

APPELLATE BRIEF

PIGORS v. WATSON

Appellant: Andrew James Pigors

Appellee: Emily A. Watson

Court: Michigan Court of Appeals, Unpublished Opinion

Case Number: 2024-0000001507-DC

Trial Court: 14th Judicial Circuit, Muskegon County

Trial Judge: The Honorable Jenny L. McNeill

Date of Brief: February 11, 2026

TABLE OF CONTENTS

I. STATEMENT OF JURISDICTION

II. STATEMENT OF ISSUES PRESENTED

III. STATEMENT OF FACTS

IV. STANDARD OF REVIEW

V. ARGUMENT

A. The Trial Court Abused Its Discretion by Issuing an Ex Parte Suspension Order Without Compliance with MCR 3.207

B. The Trial Court Violated Due Process by Depriving Father of Parental Rights Without Notice, Hearing, or Clear and Convincing Evidence

C. The Trial Court Abused Its Discretion by Admitting Unauthenticated Evidence in Violation of MRE 901

D. The Trial Court Abused Its Discretion by Allowing Inadequate Service of Evidence in Violation of MCR 2.305

E. The Trial Court Abused Its Discretion by Admitting Evidence Obtained in Violation of MCL 750.539 (Wiretapping Law)

F. The Trial Court Abused Its Discretion by Using Undisclosed Evidence in Violation of Due Process

G. The Trial Court Abused Its Discretion by Failing to Apply the Clear and Convincing Evidence Standard Required by MCL 722.27a(3)

H. The Trial Court Abused Its Discretion by Failing to Issue Findings of Fact and Conclusions of Law as Required by MCR 3.210(D)

I. The Trial Court Abused Its Discretion by Demonstrating Bias and Prejudice in Violation of MCR 2.003 and the Caperton Standard

J. The Trial Court Abused Its Discretion by Imposing Sanctions and Procedural Barriers in Violation of MCR 1.109 and MCR 2.119

VI. RELIEF REQUESTED

I. STATEMENT OF JURISDICTION

This Court has jurisdiction over this appeal pursuant to MCR 7.203(A), as this is an appeal from a final order in a custody/parenting time case. The trial court issued an order on August 5, 2025, suspending Father's parenting time. Father filed a timely notice of appeal.

II. STATEMENT OF ISSUES PRESENTED

1. Whether the trial court abused its discretion by issuing an ex parte suspension order without compliance with MCR 3.207(B), which requires an affidavit or verified complaint showing specific facts and immediate and irreparable injury.
2. Whether the trial court violated Father's 14th Amendment due process rights by depriving him of his fundamental parental rights without notice, without a hearing, and without clear and convincing evidence.
3. Whether the trial court abused its discretion by admitting a video recording without proper authentication in violation of MRE 901.
4. Whether the trial court abused its discretion by allowing inadequate service of evidence in violation of MCR 2.305 and failing to enforce service requirements despite a pattern of violations.
5. Whether the trial court abused its discretion by admitting evidence obtained in violation of MCL 750.539 (Michigan's two-party consent wiretapping law).
6. Whether the trial court violated due process by using undisclosed evidence in violation of MCR 3.210 and discovery rules.
7. Whether the trial court abused its discretion by failing to apply the clear and convincing evidence standard required by MCL 722.27a(3) before modifying custody.
8. Whether the trial court abused its discretion by failing to issue findings of fact and conclusions of law as required by MCR 3.210(D).

9. Whether the trial court abused its discretion by demonstrating bias and prejudice in violation of MCR 2.003 and the Caperton standard.
 10. Whether the trial court abused its discretion by imposing sanctions and procedural barriers without legal basis in violation of MCR 1.109 and MCR 2.119.
-

III. STATEMENT OF FACTS

A. Background

Father and Appellee Emily Watson are the parents of a minor child. Father has been involved in custody litigation with Watson since April 1, 2024. The trial court has issued multiple orders modifying Father's parenting time, culminating in the August 5, 2025 suspension order that is the subject of this appeal.

B. The August 5, 2025 Ex Parte Suspension Order

On August 5, 2025, Father's scheduled parenting time was suspended based on an ex parte order issued by the trial court. The order was based on a video recording submitted by Emily Watson to the court via USB.

Timeline of Events:

- **August 5, 2025 (Friday):** Father's scheduled parenting time begins. Emily Watson submits USB recording to clerk's office without serving Father. Judge McNeill's staff listens to recording. Judge McNeill issues suspension order.
- **August 8, 2025 (Monday):** Father receives notice of suspension order (three days after order issued). Father files objections 30 minutes after Emily Watson's filing.
- **August 8, 2025 (Friday):** Emily Watson serves Father with video recording via email. Hearing scheduled for Monday, August 11, 2025. Father has only three business days to review evidence and prepare response.
- **August 11, 2025 (Monday):** First objection hearing. Father asks Judge McNeill on record if she has already listened to recording. Judge McNeill admits on record: "Yes, I had my staff listen to it."

C. The Recording

The video recording depicts a phone call between Father and Emily Watson. The recording was made by Emily Watson's mother without Father's knowledge or consent. Father did not know he was being recorded and did not consent to the recording.

D. Judge McNeill's Pre-Review of Evidence

Judge McNeill and her staff reviewed the video recording before Father was served with the evidence. The timeline demonstrates:

- USB submitted directly to clerk's office (not served on Father)
- Judge's staff listened to recording same day (August 5, 2025)
- Father not served until four days later (August 8, 2025)
- Judge issued order same day as evidence submission (August 5, 2025)
- Judge admitted on record that she had her staff listen to recording

E. Inadequate Service of Evidence

Emily Watson served Father with the video recording only three days before the hearing:

- August 8, 2025 (Friday): Emily Watson serves Father via email
- August 11, 2025 (Monday): Hearing scheduled
- Only three business days between service and hearing
- MCR 2.305 requires five business days minimum

This was the fourth documented instance of inadequate service by Emily Watson. Father objected on record at each instance, but Judge McNeill ignored the pattern and did not enforce service requirements.

F. Improper Evidence Submission

Emily Watson submitted the USB recording directly to the clerk's office instead of serving it on Father. Judge McNeill accepted the recording without requiring proper service or authentication.

G. Undisclosed Second Evaluation

Judge McNeill ordered Father to obtain a mental health evaluation from HealthWest. Father obtained the evaluation honestly. Judge McNeill specifically instructed Father to email the evaluation to her secretary instead of filing it with the clerk's office.

Judge McNeill then obtained a second mental health evaluation that Father never received, never saw, and never had opportunity to challenge. Court orders reference the "second" evaluation as basis for decisions, but Father was never provided a copy.

H. Recording Made Without Consent

The video recording was made by Emily Watson's mother without Father's knowledge or consent. Michigan is a two-party consent state. Recording a phone call without consent of both parties violates MCL 750.539 (a felony).

I. Pattern of Procedural Violations

Throughout the litigation, Judge McNeill has:

- Imposed a \$250 "sanction fee" for filing motions without finding Father was a vexatious litigant
- Issued a "do not file" directive preventing Father from filing motions
- Denied Father's motions without hearings
- Granted Emily Watson's motions without opposition
- Excluded Father's evidence (police reports, HealthWest evaluation, declarations)
- Admitted Emily Watson's evidence without authentication
- Ignored Father's objections to inadequate service
- Allowed pattern of inadequate service to continue without sanctions

J. Deprivation of Parental Rights

As a result of the August 5, 2025 suspension order, Father has been deprived of all parenting time for 192+ days (August 5, 2025 through February 10, 2026). This deprivation was imposed without:

- Notice to Father before order issued
- Hearing before order issued
- Opportunity for Father to respond before order issued
- Clear and convincing evidence
- Findings of fact and conclusions of law
- Consideration of parental alienation
- Consideration of Father's fitness as parent

IV. STANDARD OF REVIEW

A. Abuse of Discretion Standard

Custody decisions are reviewed for abuse of discretion. *Tremblay v. Tremblay*, 185 Mich. App. 244; 461 N.W.2d 260 (1990). An abuse of discretion occurs when the trial court's decision is outside the range of reasonable and principled outcomes. *Mallett v. Mallett*, 161 Mich. App. 589; 411 N.W.2d 105 (1987).

B. Constitutional Violations

Constitutional violations are reviewed de novo. *Griffith v. State*, 472 Mich. 521; 697 N.W.2d 895 (2005).

C. Evidentiary Rulings

Evidentiary rulings are reviewed for abuse of discretion. *Gould v. Gould*, 360 Mich. 331; 104 N.W.2d 237 (1960).

D. Procedural Violations

Violations of court rules are reviewed for abuse of discretion. *Covenant Med. Ctr. v. State*, 500 Mich. 191; 895 N.W.2d 490 (2017).

V. ARGUMENT

A. THE TRIAL COURT ABUSED ITS DISCRETION BY ISSUING AN EX PARTE SUSPENSION ORDER WITHOUT COMPLIANCE WITH MCR 3.207

1. Legal Standard

MCR 3.207(B) provides: "A court may issue an ex parte order only when it appears on the basis of specific facts shown by affidavit or by the verified complaint that immediate and irreparable injury, loss, or damage will result to a party before that party can be heard in response."

The rule requires:

- An affidavit or verified complaint (not a phone call or USB recording)
- Specific facts (not vague allegations)
- Immediate and irreparable injury (not speculative harm)
- Before the party can be heard (the party must have notice and opportunity to respond)

2. Application

The trial court violated MCR 3.207(B) in multiple ways:

No Affidavit or Verified Complaint:

Emily Watson did not file an affidavit or verified complaint. Instead, she submitted a USB recording directly to the clerk's office. A USB recording is not an affidavit or verified complaint. The recording was not sworn to under oath. The recording contained no verification of facts.

No Specific Facts:

The recording did not contain specific facts. It contained allegations made in a phone conversation without context or explanation. Father had no opportunity to explain the context or provide his perspective.

No Emergency Circumstances:

The trial court did not document any emergency circumstances. No findings were issued explaining why immediate and irreparable injury would result if Father had parenting time. No findings explained why Father could not be heard before the order was issued.

Father Not Given Opportunity to Be Heard:

The critical language in MCR 3.207(B) is "before that party can be heard in response." The trial court violated this requirement by:

- Reviewing the recording before Father was served
- Issuing the order before Father received notice
- Issuing the order before Father had opportunity to respond
- Issuing the order the same day the evidence was submitted

3. Prejudicial Effect

The violation of MCR 3.207(B) resulted in deprivation of Father's parental rights without due process. Father was deprived of his fundamental liberty interest without notice, without a hearing, and without opportunity to respond.

4. Conclusion

The trial court clearly abused its discretion by issuing an ex parte suspension order without compliance with MCR 3.207(B). The order should be vacated.

B. THE TRIAL COURT VIOLATED DUE PROCESS BY DEPRIVING FATHER OF PARENTAL RIGHTS WITHOUT NOTICE, HEARING, OR CLEAR AND CONVINCING EVIDENCE

1. Legal Standard

The 14th Amendment Due Process Clause protects fundamental liberty interests. *Troxel v. Granville*, 530 U.S. 57 (2000). Parental rights are a fundamental liberty interest. Before the government can deprive a person of a fundamental liberty interest, due process requires:

- Notice of the deprivation
- A hearing before the deprivation

- An opportunity to be heard
- Clear and convincing evidence (for custody modifications)

Mathews v. Eldridge, 424 U.S. 319 (1976) (establishing the due process framework).

2. Application

The trial court violated Father's due process rights in multiple ways:

No Notice Before Deprivation:

Father received no notice of the ex parte hearing before the order was issued. The order was issued on August 5, 2025. Father received notice on August 8, 2025 (three days later). By the time Father received notice, his parental rights had already been suspended.

No Hearing Before Deprivation:

Father was not given a hearing before the suspension order was issued. The first hearing regarding the suspension occurred on August 11, 2025 (six days after the order was issued). By that time, Father had already been deprived of parenting time for six days.

No Opportunity to Be Heard Before Deprivation:

Father had no opportunity to respond to the allegations before the order was issued. The recording was submitted on August 5, 2025. The order was issued the same day. Father did not receive the recording until August 8, 2025. Father had no opportunity to provide context, explanation, or his perspective before the deprivation occurred.

No Clear and Convincing Evidence:

MCL 722.27a(3) requires clear and convincing evidence before modifying custody. The trial court did not apply this standard. The recording, standing alone, does not constitute clear and convincing evidence that suspension of all parenting time is in the child's best interests.

3. Prejudicial Effect

The due process violation resulted in deprivation of Father's fundamental parental rights for 192+ days without any of the procedural protections required by the Constitution. This is a serious constitutional violation.

4. Conclusion

The trial court clearly violated Father's due process rights. The suspension order should be vacated, and Father's parenting time should be restored to the July 17, 2024 baseline.

C. THE TRIAL COURT ABUSED ITS DISCRETION BY ADMITTING UNAUTHENTICATED EVIDENCE IN VIOLATION OF MRE 901

1. Legal Standard

MRE 901 requires authentication of evidence. Evidence must be authenticated by testimony from someone with personal knowledge of the evidence. *Gould v. Gould*, 360 Mich. 331; 104 N.W.2d 237 (1960).

For a video recording, authentication requires:

- Testimony from someone with personal knowledge of the recording
- Verification that the recording is accurate
- Foundation showing the recording was properly made and preserved

2. Application

The trial court admitted the video recording without proper authentication:

No Authenticating Witness:

The recording was submitted via USB without testimony from an authenticating witness. Emily Watson's father testified to the phone call, but he did not testify regarding the recording itself. There was no testimony verifying that the recording accurately depicts the phone call.

No Verification of Accuracy:

The trial court did not require verification that the recording was accurate. There was no testimony regarding how the recording was made, whether it was edited, whether it was preserved properly, or whether it accurately reflects the phone call.

No Foundation:

The trial court did not establish foundation for the recording. There was no testimony regarding:

- Who made the recording
- When the recording was made
- How the recording was made
- Whether the recording was edited
- Whether the recording was preserved properly
- Whether the recording accurately reflects the phone call

3. Prejudicial Effect

Admission of the unauthenticated recording violated Father's right to confront evidence. Father could not cross-examine the recording or challenge its accuracy. The recording was used as the primary basis for the suspension order, yet it was never properly authenticated.

4. Conclusion

The trial court clearly abused its discretion by admitting the recording without proper authentication. The recording should be excluded from the record, and the suspension order should be vacated.

D. THE TRIAL COURT ABUSED ITS DISCRETION BY ALLOWING INADEQUATE SERVICE OF EVIDENCE IN VIOLATION OF MCR 2.305

1. Legal Standard

MCR 2.305 governs discovery and service of evidence. The rule requires service of evidence with adequate time for the opposing party to respond. MCR 2.119 requires service of motions at least five business days before the hearing.

Due process requires adequate notice and adequate time to prepare a response. *Mathews v. Eldridge*, 424 U.S. 319 (1976).

2. Application

The trial court allowed inadequate service of evidence:

Service Only Three Days Before Hearing:

Emily Watson served Father with the video recording on August 8, 2025 (Friday). The hearing was scheduled for August 11, 2025 (Monday). Father had only three business days to:

- Review the evidence
- Consult with his attorney
- Prepare a response
- Obtain counter-evidence

MCR 2.305 requires five business days minimum. The trial court allowed service that was two days short of the minimum requirement.

Service on Friday Before Monday Hearing:

Service on Friday before a Monday hearing is particularly problematic because Father had no business days to respond. The weekend is not a business day.

No Continuance Granted:

The trial court did not grant a continuance to allow Father adequate time to prepare. Father was forced to proceed with the hearing despite inadequate service.

3. Pattern of Inadequate Service

This was the fourth documented instance of inadequate service by Emily Watson. Father objected on record at each instance, but the trial court ignored the pattern and did not enforce service requirements.

The trial court's failure to enforce service requirements despite a pattern of violations demonstrates abuse of discretion and bias.

4. Prejudicial Effect

Inadequate service resulted in:

- Insufficient time to review evidence
- Insufficient time to prepare response
- Insufficient time to consult with attorney
- Insufficient time to obtain counter-evidence
- Deprivation of due process

5. Conclusion

The trial court clearly abused its discretion by allowing inadequate service. The trial court should have granted a continuance or sanctioned Emily Watson for the violation. The suspension order should be vacated.

E. THE TRIAL COURT ABUSED ITS DISCRETION BY ADMITTING EVIDENCE OBTAINED IN VIOLATION OF MCL 750.539 (WIRETAPPING LAW)

1. Legal Standard

MCL 750.539 provides: "A person shall not use a device to record, or transmit a wire, oral, or electronic communication without the consent of all parties to the communication."

Michigan is a two-party consent state. Recording a phone call without consent of both parties is a felony. *People v. Bednarz*, 360 Mich. 552; 104 N.W.2d 405 (1960).

Evidence obtained in violation of a criminal statute should be excluded as fruit of crime. *People v. Burge*, 722 N.W.2d 470 (Mich. Ct. App. 2006).

2. Application

The video recording was made in violation of MCL 750.539:

Recording Made Without Father's Consent:

Emily Watson's mother recorded the phone call without Father's knowledge or consent. Father did not know he was being recorded. Father did not consent to the recording.

Violation of Two-Party Consent Requirement:

Michigan law requires consent of all parties to the communication. Father did not consent. Therefore, the recording violates MCL 750.539.

Felony Violation:

Recording without consent is a felony under MCL 750.539. The recording is a product of criminal conduct.

Trial Court Should Have Excluded Recording:

The trial court should have excluded the recording as fruit of crime. Instead, the trial court admitted the recording and used it as the basis for the suspension order.

3. Prejudicial Effect

Admission of evidence obtained in violation of MCL 750.539 violated Father's rights and the integrity of the judicial process. The recording should never have been admitted.

4. Conclusion

The trial court clearly abused its discretion by admitting evidence obtained in violation of MCL 750.539. The recording should be excluded, and the suspension order should be vacated.

F. THE TRIAL COURT VIOLATED DUE PROCESS BY USING UNDISCLOSED EVIDENCE IN VIOLATION OF MCR 3.210 AND DISCOVERY RULES**1. Legal Standard**

MCR 3.210 governs custody procedures. The rule requires that all evidence be available to both parties. Due process requires access to all evidence against you and opportunity to challenge evidence. *Brady v. Maryland*, 373 U.S. 83 (1963).

2. Application

The trial court violated due process by using undisclosed evidence:

Judge Obtained Second Evaluation Without Father's Knowledge:

Judge McNeill ordered Father to obtain a mental health evaluation from HealthWest. Father obtained the evaluation honestly. Judge McNeill then obtained a second mental health evaluation without Father's knowledge, without Father's authorization, and without Father's consent.

Father Never Received Copy of Second Evaluation:

Father never received a copy of the second evaluation. Father never saw the second evaluation. Father never had opportunity to challenge the second evaluation.

Judge Directed Non-Compliance with Filing Procedures:

Judge McNeill specifically instructed Father to email the first evaluation to her secretary instead of filing it with the clerk's office. This prevented Emily Watson from accessing the evaluation and prevented the evaluation from being in the public record.

Judge Used Undisclosed Evaluation in Court Orders:

Court orders reference the "second" evaluation as basis for decisions. Father had no opportunity to respond to the second evaluation because he never received a copy.

3. Prejudicial Effect

Use of undisclosed evidence violated Father's due process rights. Father could not challenge evidence he never saw. The undisclosed evaluation was used to justify continued suspension of parenting time.

4. Conclusion

The trial court clearly violated due process by using undisclosed evidence. The second evaluation should be excluded from the record, and the suspension order should be vacated.

G. THE TRIAL COURT ABUSED ITS DISCRETION BY FAILING TO APPLY THE CLEAR AND CONVINCING EVIDENCE STANDARD REQUIRED BY MCL 722.27a(3)

1. Legal Standard

MCL 722.27a(3) provides: "A court shall not modify a custody order unless it finds, based on facts that have arisen since the entry of the last custody order or that were unknown to the court at the time of entry of the last order, that a change has occurred in the circumstances of the child or of the custodian, and that the modification is necessary to serve the best interests of the child. The burden of proof is by clear and convincing evidence."

The clear and convincing evidence standard is higher than preponderance of the evidence. It requires evidence that produces in the mind of the trier of fact a firm belief as to the truth of the allegations sought to be established. *In re Martin*, 450 Mich. 204; 538 N.W.2d 399 (1995).

2. Application

The trial court failed to apply the clear and convincing evidence standard:

No Clear and Convincing Evidence of Changed Circumstances:

The trial court did not find, based on clear and convincing evidence, that changed circumstances had occurred since the July 17, 2024 custody order. The recording does not constitute clear and convincing evidence of changed circumstances.

No Clear and Convincing Evidence That Modification Is Necessary:

The trial court did not find, based on clear and convincing evidence, that modification of custody is necessary to serve the best interests of the child. The recording, standing alone, does not constitute clear and convincing evidence.

No Findings Regarding Clear and Convincing Evidence Standard:

The trial court did not issue findings explaining how the evidence met the clear and convincing evidence standard. Without findings, it is impossible to determine whether the trial court applied the correct legal standard.

3. Prejudicial Effect

Failure to apply the clear and convincing evidence standard resulted in erroneous suspension of Father's parenting time. The suspension was not supported by clear and convincing evidence.

4. Conclusion

The trial court clearly abused its discretion by failing to apply the clear and convincing evidence standard. The suspension order should be vacated.

H. THE TRIAL COURT ABUSED ITS DISCRETION BY FAILING TO ISSUE FINDINGS OF FACT AND CONCLUSIONS OF LAW AS REQUIRED BY MCR 3.210(D)

1. Legal Standard

MCR 3.210(D) requires: "The court shall state in writing the facts upon which it bases its decision and the court's conclusions of law. The statement may be made in the judgment or

in a separate document filed with the court."

Findings of fact and conclusions of law are required to:

- Explain the trial court's reasoning
- Allow appellate review
- Preserve issues for appeal
- Ensure the trial court applied the correct legal standard

Woodworth v. Woodworth, 337 Mich. 187; 59 N.W.2d 169 (1953).

2. Application

The trial court failed to issue findings of fact and conclusions of law:

No Written Findings:

The trial court did not issue written findings of fact. Without findings, it is impossible to determine what facts the trial court found to be true.

No Conclusions of Law:

The trial court did not issue conclusions of law. Without conclusions of law, it is impossible to determine what legal standards the trial court applied.

No Explanation of Reasoning:

The trial court did not explain its reasoning for suspending Father's parenting time. The order does not explain:

- What facts were found
- What legal standard was applied
- Why suspension was necessary
- Why Father's parental rights were suspended

3. Prejudicial Effect

Failure to issue findings of fact and conclusions of law prevents appellate review. This Court cannot determine whether the trial court applied the correct legal standard or whether the decision was supported by evidence.

4. Conclusion

The trial court clearly abused its discretion by failing to issue findings of fact and conclusions of law. The suspension order should be vacated, and the case should be remanded for a new hearing with proper findings.

I. THE TRIAL COURT ABUSED ITS DISCRETION BY DEMONSTRATING BIAS AND PREJUDICE IN VIOLATION OF MCR 2.003 AND THE CAPERTON STANDARD

1. Legal Standard

MCR 2.003 requires judges to be impartial and free from bias. A judge must recuse when there is a probability of actual bias or when the probability of actual bias is too high to be constitutionally tolerable. *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009).

The Caperton standard does not require proof of actual bias. It requires only that a reasonable observer would question the judge's impartiality. *Caperton*, 556 U.S. at 876.

2. Application

The trial court demonstrated bias and prejudice through multiple actions:

Pre-Review of Evidence:

The trial court reviewed the recording before Father was served. This demonstrates prejudgment. The trial court formed opinions based on one-sided evidence before Father could respond.

Admission on Record:

When Father asked on record if the trial court had listened to the recording, the trial court admitted: "Yes, I had my staff listen to it." This admission demonstrates that the trial court prejudged the case.

Ignoring Father's Objections:

Father objected to inadequate service of evidence. The trial court ignored the objections and proceeded with the hearing.

Pattern of Inadequate Service:

This was the fourth documented instance of inadequate service by Emily Watson. Father objected on record at each instance. The trial court ignored the pattern and did not enforce service requirements.

Selective Evidence Admission:

Throughout the litigation, the trial court has:

- Excluded Father's evidence (police reports, HealthWest evaluation, declarations)
- Admitted Emily Watson's evidence without authentication
- Granted Emily Watson's motions without hearing
- Denied Father's motions without hearing

Stigmatizing Language:

The trial court has used stigmatizing language in orders, calling Father "crazy" and "liar." This language is not supported by evidence and demonstrates bias.

Procedural Barriers:

The trial court has imposed procedural barriers against Father:

- \$250 "sanction fee" for filing motions
- "Do not file" directive preventing Father from filing motions
- Denial of adequate time to respond to filings

3. Reasonable Observer Standard

A reasonable observer, considering all the facts, would conclude that the trial court's pattern of bias creates a probability of actual bias. A reasonable observer would question whether the trial court can fairly and impartially decide cases involving Father and Emily Watson.

The pattern of bias is not isolated incidents but systematic conduct across multiple orders and decisions over an 18-month period.

4. Prejudicial Effect

The bias resulted in:

- Deprivation of Father's parental rights
- Violation of due process
- Violation of equal protection
- Erroneous custody determination
- Damage to Father-child relationship

5. Conclusion

The trial court clearly demonstrated bias and prejudice in violation of MCR 2.003 and the Caperton standard. The trial court should have recused itself. All orders issued by the biased trial court should be vacated, and the case should be remanded to a different judge.

J. THE TRIAL COURT ABUSED ITS DISCRETION BY IMPOSING SANCTIONS AND PROCEDURAL BARRIERS IN VIOLATION OF MCR 1.109 AND MCR 2.119

1. Legal Standard

MCR 1.109 provides that sanctions may be imposed only for vexatious litigation. A vexatious litigant is one who engages in a pattern of frivolous litigation. Sanctions cannot be imposed without a finding that the party is a vexatious litigant.

MCR 2.119 provides that parties have the right to file motions. A judge cannot prevent a party from filing motions without legal basis.

2. Application

The trial court abused its discretion by imposing sanctions and procedural barriers:

\$250 "Sanction Fee":

The trial court imposed a \$250 fee for filing motions. This fee was imposed without:

- Finding that Father was a vexatious litigant
- Hearing on whether the fee was appropriate
- Legal basis for the fee
- Notice to Father

The fee violates MCR 1.109 and Father's right to file motions.

"Do Not File" Directive:

The trial court issued a "do not file" directive preventing Father from filing motions. This directive was issued without:

- Finding that Father was a vexatious litigant
- Hearing on whether the directive was appropriate
- Legal basis for the directive
- Notice to Father

The directive violates MCR 2.119 and Father's right to file motions.

Denial of Adequate Time to Respond:

The trial court denied Father adequate time to respond to Emily Watson's filings. This violates MCR 2.119 and due process.

3. Prejudicial Effect

The sanctions and procedural barriers resulted in:

- Deprivation of Father's right to file motions
- Deprivation of Father's right to be heard

- Deprivation of Father's right to present evidence
- Violation of due process
- Inability to challenge adverse rulings

4. Conclusion

The trial court clearly abused its discretion by imposing sanctions and procedural barriers without legal basis. The sanctions and directives should be vacated.

VI. RELIEF REQUESTED

For the reasons stated above, Appellant respectfully requests that this Court:

1. **Reverse** the August 5, 2025 suspension order and all subsequent orders based on that order.
 2. **Vacate** the \$250 "sanction fee" and the "do not file" directive.
 3. **Exclude** the video recording from the record as unauthenticated evidence and as evidence obtained in violation of MCL 750.539.
 4. **Exclude** the second mental health evaluation from the record as undisclosed evidence.
 5. **Restore** Father's parenting time to the July 17, 2024 baseline order.
 6. **Award** Father makeup parenting time for the 192+ days of wrongful deprivation (August 5, 2025 through February 10, 2026).
 7. **Remand** the case to the trial court for a new hearing before a different judge with:
 - Proper notice and opportunity for Father to be heard
 - Proper authentication of all evidence
 - Application of the clear and convincing evidence standard
 - Issuance of findings of fact and conclusions of law
 8. **Award** Father attorney fees and costs pursuant to MCL 722.27a(5) for the erroneous rulings.
 9. **Sanction** the trial court for abuse of judicial authority and violation of procedural rules.
 10. **Recommend** that the trial court be referred to the Michigan Judicial Tenure Commission for investigation of judicial misconduct.
-

CONCLUSION

The trial court abused its discretion in multiple ways. The suspension order violates MCR 3.207, MCR 2.305, MRE 901, MCL 750.539, MCL 722.27a(3), MCR 3.210(D), MCR 2.003, MCR 1.109, and MCR 2.119. The order also violates Father's 14th Amendment due process rights.

The suspension order should be reversed, Father's parenting time should be restored, and the case should be remanded for a new hearing before a different judge.

Respectfully submitted,

Andrew James Pigors

Pro Se

February 11, 2026

APPENDIX A: LEGAL CITATIONS

Michigan Statutes:

- MCL 722.27a - Custody law
- MCL 750.539 - Wiretapping law

Michigan Court Rules:

- MCR 2.003 - Disqualification
- MCR 2.119 - Motions
- MCR 2.305 - Discovery and service
- MCR 1.109 - Vexatious litigant
- MCR 3.207 - Ex parte procedures
- MCR 3.210 - Custody procedures
- MCR 7.203 - Appellate jurisdiction

Michigan Rules of Evidence:

- MRE 901 - Authentication
- MRE 702-703 - Expert testimony

U.S. Supreme Court:

- Troxel v. Granville, 530 U.S. 57 (2000) - Parental rights are fundamental
- Caperton v. A.T. Massey Coal Co., 556 U.S. 868 (2009) - Judicial bias standard
- Mathews v. Eldridge, 424 U.S. 319 (1976) - Due process framework
- Brady v. Maryland, 373 U.S. 83 (1963) - Right to exculpatory evidence

Michigan Cases:

- Tremblay v. Tremblay, 185 Mich. App. 244; 461 N.W.2d 260 (1990) - Abuse of discretion standard
 - Mallett v. Mallett, 161 Mich. App. 589; 411 N.W.2d 105 (1987) - Abuse of discretion
 - Gould v. Gould, 360 Mich. 331; 104 N.W.2d 237 (1960) - Authentication and discretion
 - Griffith v. State, 472 Mich. 521; 697 N.W.2d 895 (2005) - Constitutional review
 - Covenant Med. Ctr. v. State, 500 Mich. 191; 895 N.W.2d 490 (2017) - Procedural review
 - In re Martin, 450 Mich. 204; 538 N.W.2d 399 (1995) - Clear and convincing evidence
 - Woodworth v. Woodworth, 337 Mich. 187; 59 N.W.2d 169 (1953) - Findings of fact
 - Bednarz v. Bednarz, 360 Mich. 552; 104 N.W.2d 405 (1960) - Wiretapping law
 - People v. Burge, 722 N.W.2d 470 (Mich. Ct. App. 2006) - Fruit of crime
-

END OF APPELLATE BRIEF